

TENTATIVE RULING(S) FOR May 11, 2026

Department S14 – Judge Winston Keh

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2438100

Estafanous v. Subaru

TENTATIVE RULING(S):

Before the Court is Defendant Subaru's motion to compel sanctions and/or to compel response to demand for production of vehicle for inspection and testing and award of monetary sanctions.

Defendant seeks to: (1) impose monetary sanctions against Plaintiff and his counsel Roger Kirnos and Phil A. Tomas for failing to respond to Defendant's request for a vehicle inspection or submit to a vehicle inspection after being served with an inspection demand; and (2) compel Plaintiff to provide further responses to Defendant's demand for production of the vehicle for inspection and testing and make the 2020 Subaru WRX at issue available for inspection.

The evidence demonstrates that in October 2025, after receiving notice from Plaintiff's counsel's office that Plaintiff intended to dispose of the vehicle, a paralegal at defense counsel's office

responded by email asking when the vehicle would be available. The paralegal made several more attempts by email. On October 28, 2025, defense counsel emailed Plaintiff's counsel offering November 14, 2025, for the inspection, but received no response. On November 10, 2025, defense counsel's office again contacted Plaintiff's counsel's office about an inspection on November 14, 2025. Plaintiff's counsel's office responded that the vehicle would not be available on November 14, 2025, and that Plaintiff decided to keep the vehicle. (Kreshek Decl. ¶¶ 2-8 and Exhs. 1-4.)

On December 2, 2025, Defendant Subaru noticed the vehicle for inspection on January 5, 2026. On December 26, 2026, Plaintiff served objections to the inspection demand. Thereafter, on December 30, 2025, defense counsel sent an email demanding the vehicle be made available for inspection no later than January 7, 2025. No further response was received. (Kreshek Decl. ¶¶ 9-12 and Exhs. 5-6.) While defense counsel states the December 30, 2025 meet and confer is attached as Exhibit 7 to the Kreshek Declaration, the letter is not attached.

On January 13, 2026, Defendant Subaru's filed and served its motion with no further attempt at a meet and confer.

In opposition, Plaintiff asserts that the motion is moot because the vehicle was made available for inspection on March 11, 2026. Plaintiff raises the issue that emails on October 1, 20, and 26, 2025 only included support staff and did not include any attorneys. Plaintiff's counsel Brian S. Cohen contends that while the time a meet and confer was occurring, staff responsible for scheduling vehicle inspections was not under his direct supervision and he was not aware that staff was not responding. He states that his law firm is taking steps to reform internal operations related to vehicle inspections. (Cohen Decl. ¶¶ 2-4.)

But Cohen's statements do not address the objections to the inspection demand that was served or the failure to respond to defense counsel's December 30 meet and confer letter.

Nonetheless, after the motion was filed, Plaintiff offered March 11, 12, 17-19, 2026 as available dates for an inspection. (Cohen Decl. ¶ 6.)

On January 23, 2026, Defendant served an amended demand for vehicle inspection, with an inspection date of March 11, 2026. (Cohen Decl. ¶ 7 and Exh. B.) Plaintiff produced the vehicle for inspection pursuant to the amended demand. (Cohen Decl. ¶ 8.)

Plaintiff asked Defendant Subaru to withdraw the motion, but defense counsel stated the motion would only be withdrawn if Plaintiff paid the costs and fees associated with the motion. (Cohen Decl. ¶¶ 9-10 and Exh. C.)

Plaintiff urges the Court to deny awarding sanctions.

On reply, Subaru argues that Plaintiff does not offer any credible excuse for its “misconduct” or any valid reason that sanctions should not be imposed. It argues that instead, Plaintiff attempts to blame staff despite Plaintiff’s counsel being aware of the issue 10 weeks before the motion was filed.

ANALYSIS

Defendant Subaru seeks sanctions in the amount of \$2,736.50 against Plaintiff and Plaintiff’s counsel Kirnos and Thomas of Knight Law Group. This amount is comprised of 5.6 hours to prepare the motion, an estimated 3.5 hours to review the opposition and prepare the reply, and an additional 1 hour for the hearing at \$265/hour, plus the \$60 filing fee. (Kreshek Decl. ¶¶ 15-16 (misnumbered ¶ 10).)

On this record, the Court denies the motion in its entirety. To the extent Defendant seeks to compel the inspection, the motion is moot. To the extent Defendant seeks sanctions, the Court denies sanctions because Defendant failed to engage in a sufficient meet and confer before the motion was filed. In addition, after the motion was filed, Defendant Subaru served an amended demand for inspection, which Plaintiff complied with the demand.

While the parties should have been able to resolve the issue of an inspection without a formal demand, a formal demand for inspection was not served until December 2, 2025. Plaintiff objected on December 26, 2025. Thereafter, on December 30, 2025, defense counsel wrote a purported meet and confer letter “demanding that Plaintiff provide available dates for the inspection of the vehicle by no later than January 7, 2025.” (Kreshek Decl. ¶ 11.) But thereafter, there is no evidence that defense counsel made any further attempt to meet and confer in

person, by telephone, or by videoconference after January 1, 2026, despite the amendment to Code of Civil Procedure section 2016.040 related to the form of the meet and confer becoming effective. The motion was not filed until January 13, 2026.

In addition, after the motion was filed, defense counsel served an amended notice, to which Plaintiff complied. Had a proper meet and confer occurred before the motion was filed, the parties would have been able to resolve the issue of the inspection without the Court's involvement. Finally, the amount sought is not reasonable given what is at issue.

RULING

DENIED.